

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

**2026PRTR065826: IN RE THE MERRILL FAMILY TRUST DATED FEBRUARY 23,
2011**

08/05/2026 in Department J6

**Hearing on Petition to Determine Existence of Trust and for Order Transferring Assets to
Trust**

If there are any encumbrances on the real property at issue, such encumbrancers are entitled to notice. Notice to such persons must be given in the manner provided in Chapter 4 (commencing with Section 413.10) in Title 5 of Part 2 of the Code of Civil Procedure. (Prob. Code, § 851, subd. (a)(2).) This does not mean that a summons should be served but rather that the manner of service must be the same as for a summons (e.g., personal service, leaving and mailing copies, or by mail with notice and acknowledgement of receipt).

The Grant Deed provided with the petition as Exh. F shows a 50% interest given to an Anthony Merrill, not James Merrill. Discuss. Petitioner is directed to serve and file a verified supplement that provides a deed showing James Merrill's 50% interest.

The Court will continue the matter for any required notice and the verified supplement to be served and filed.